

25PSCV03423 25PSCV03423

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Case Number: 25PSCV03423 Hearing Date: July 29, 2026 Dept: 6

Plaintiff

Longsail USA Corporation's Request for Entry of Default Judgment

Defendant: Solar4America Technology Inc.

TENTATIVE RULING

Plaintiff's request for entry of

default judgment is DENIED without prejudice. Plaintiff can resubmit the

default judgment request correcting the defects identified herein before the

hearing on this matter.

BACKGROUND

This

is a business dispute. On September 22, 2025, plaintiff Longsail USA

Corporation (Plaintiff) against defendant Solar4America Technology Inc.

(Defendant) and Does 1 to 20, alleging causes of action for breach of written

contract, breach of settlement agreement, breach of the implied covenant of

good faith and fair dealing, constructive fraud, unjust enrichment

(quasi-contract/restitution), declaratory relief, and reimbursement of

arbitration fees.

On

January 12, 2026, the court clerk entered default against Defendant.

On

May 5, 2026, the Court denied Plaintiff's request for entry of default judgment

without prejudice.

On

June 15, 2026, Plaintiff requested entry of default judgment.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party

has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party

seeking judgment on the default by the court must file a Request for Court

Judgment and: (1) a brief summary of the case; (2) declarations or other

admissible evidence in support of the judgment requested; (3) interest

computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration

of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all

parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff seeks

default judgment against Defendant in the total amount of \$1,128,818.11, including \$864,867.55 in damages, \$263,333.04 in interest, \$0.00 in attorney fees, and \$617.52 in costs. The Court still finds some of the same problems with Plaintiff's default judgment request. (See Order re Court Ruling (5/5/26).) First, Plaintiff still has not provided documentary evidence of damages of Defendant failing to pay. (Code Civ. Proc., § 585, subd. (b) ["The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff's favor for that relief, not exceeding the amount stated in the complaint... as appears by the evidence to be just"]; Cal. Rules of Court, rule 3.1800, subds. (a)(2), (a)(8).) In the context of a request for court judgment by default, evidence to establish liability is not required since a defendant's failure to answer the complaint admits the well-pleaded allegations of the

complaint, and no further proof of liability is required. (Carlsen v.

Koivumaki (2014) 227 Cal.App.4th 879, 883.) However, proof of

damages is still required. (Id. at p. 884.) Crystal Biao's declaration

indicates having reviewed Plaintiff's business and payment records, but no such

records were provided with this default judgment request. (Biao Decl., ¶ 9; see

Statement of the Case, Exs. A-D.)

Second, it is not clear that the March 16,

2023 settlement agreement (the 2023 Settlement) entitles Plaintiff to recover

\$864,357.55 in damages. The 2023 Settlement shows "\$864,357.55" in two places crossed

out by pen or pencil with the words "Balance To Be Determined" written in their

place. (Statement of the Case, Ex. A, p. 9 of pdf.) The 2023 Settlement

otherwise provides that Defendant would make weekly payments of \$25,000.00

until the settlement amount is paid off, but given that the settlement amount

is defined as "Balance To Be Determined," it is unclear whether the parties

even have an enforceable agreement with respect to the 2023 Settlement. (See Molen

v. Friedman (1998) 64 Cal.App.4th 1149, 1153 ["a default

only admits the well pleaded allegations of the complaint and, where those

allegations do not state a cause of action or contain all elements essential to

support the demand for relief, the judgment is void as to such matters"].) Plaintiff also did

not countersign the 2023 Settlement. (Statement of the Case, Ex. A, p. 12 of

pdf.) It is also unclear how Defendant could breach the 2023 Settlement on March 3, 2023, when the 2023 Settlement is dated March 16, 2023, and Defendant signed the 2023 Settlement on March 16, 2023. (Statement of the Case, Ex. A, pp. 13, 16 of pdf.) It appears then that the prior October 27, 2022 settlement agreement, which provides a settlement amount of \$742,211.00, would govern the parties' dispute. (See Statement of the Case, Ex. A, pp. 13-14 of pdf.) All of these issues need to be addressed by Plaintiff.

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is DENIED without prejudice. Plaintiff can resubmit the default judgment request correcting the defects identified herein before the hearing on this matter.